

Durgesh Kumari Verma D/O Shri Suresh ... vs The State Of Rajasthan ... on 25 January, 2023

Author: Sudesh Bansal

Bench: Sudesh Bansal

[2023/RJJP/000502]

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

S.B. Civil Writ Petition No. 543/2023

Durgesh Kumari Verma D/o Shri Suresh Chand Verma, Aged
About 33 Years, R/o Village Matunda, Tehsil And District Bundi
(Raj.).

---Petitioner

Versus

1. The State Of Rajasthan, Through Principle Secretary,
Panchayati Raj Department, Government Of Rajasthan,
Government Secretariat, Jaipur.
2. Zila Parishad, Kota Through Its Chief Executive Officer,
Kota (Raj.).

---Respondents

For Petitioner(s) : Mr. Himanshu Jain
For Respondent(s) :

HON'BLE MR. JUSTICE SUDESH BANSAL

Order

25/01/2023

The writ petition under Article 226 of the Constitution of India has been filed by the petitioner challenging the action of respondents whereby the petitioner has been denied appointment on the post of Lower Division Clerk in the category of female divorcee SC pursuant to advertisement dated 14-2-2013.

2. The facts of the case are that pursuant to advertisement dated 14-2-2013 for the post of LDC the petitioner being eligible applied under the Female Divorce SC category, participated in the selection process and secured 35.700 marks. She was called for documents verification and vide [2023/RJJP/000502] (2 of 3) [CW-543/2023] order dated 7-10-2022 the candidature of petitioner has been rejected on account of having no decree of divorce.

3. Counsel for the petitioner has submitted that as there was dispute of petitioner with her husband their nuptial ties were terminated on 24-7-2012 and a divorce agreement was executed. Thereafter on 17-10-2022 application under Section 13 of the Hindu Marriage Act, 1955 has also been filed. Counsel for petitioner submits that since marital ties of petitioner with her husband have been terminated on 24-7- 2012, she is entitled for consideration her candidature in female divorcee category.

4. Heard counsel for the petitioner and perused the material available on record.

5. Counsel for petitioner does not dispute that the petitioner has not obtained a decree of divorce from the court and in order to show her status as divorcee, only an agreement of divorce dated 24-7-2012 was relied upon. Firstly, an agreement for divorce cannot be treated as decree for divorce. Secondly, the agreement of divorce dated 24-7- 2012 itself contains a clause 5 for obtaining decree of divorce, which reads thus:-

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[2023/RJJP/000502]

(3 of 3)

Therefore the petitioner herself

agreement for divorce as final. It is also not in dispute that after rejection of candidature of petitioner on 7-10-2022, the petitioner has filed application under Section 13 of the Hindu Marriage Act, 1955.

6. The legal position is well settled that the petitioner was required to acquire the status of divorce by way of decree of court before the last date of submission of application form for the post of LDC pursuant to advertisement dated 14-2- 2013. Reference can be made to judgment of the Apex Court in case of Rakesh Kumar Sharma Vs. State (NCT of Delhi [(2013)11 SCC 58]. Admittedly, the petitioner does not possess the decree of divorce, even till date. Therefore, this court does not find any illegality on the part of respondents in rejecting the candidature of petitioner in the category of

female divorcee SC.

7. For the discussion made herein above, there is no force in the petition and the same is dismissed. No costs.

8. Stay application and all other pending application(s), if any, also stand disposed of.

(SUDESH BANSAL),J Arn/3 Powered by TCPDF (www.tcpdf.org)